

# HOUSE . . . . . No. 2382

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## The Commonwealth of Massachusetts

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PRESENTED BY:

***Tackey Chan***

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*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to office-based surgical centers.

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PETITION OF:

| NAME:                      | DISTRICT/ADDRESS:                        | DATE ADDED:      |
|----------------------------|------------------------------------------|------------------|
| <i>Tackey Chan</i>         | <i>2nd Norfolk</i>                       | <i>1/14/2025</i> |
| <i>Lindsay N. Sabadosa</i> | <i>1st Hampshire</i>                     | <i>1/27/2025</i> |
| <i>Meghan K. Kilcoyne</i>  | <i>12th Worcester</i>                    | <i>1/27/2025</i> |
| <i>Joanne M. Comerford</i> | <i>Hampshire, Franklin and Worcester</i> | <i>1/31/2025</i> |
| <i>Patrick M. O'Connor</i> | <i>First Plymouth and Norfolk</i>        | <i>3/14/2025</i> |
| <i>Rodney M. Elliott</i>   | <i>16th Middlesex</i>                    | <i>6/9/2025</i>  |

# HOUSE . . . . . No. 2382

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By Representative Chan of Quincy, a petition (accompanied by bill, House, No. 2382) of Tackey Chan and others relative to office-based surgical centers. Public Health.

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## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act relative to office-based surgical centers.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           Section 51N of chapter 111, as inserted by chapter 343 of the Acts of 2024, is hereby  
2   amended by striking out the definition of “Office-based surgical center,” and inserting in place  
3   thereof the following definition:-

4           “Office-based surgical center”, an office, group of offices, a facility or any portion  
5   thereof owned, leased or operated by 1 or more practitioners engaged in a solo or group practice,  
6   however organized, whether conducted for profit or not for profit, which is advertised,  
7   announced, established or maintained for the purpose of providing office-based surgical services;  
8   provided, however, that “office-based surgical center” shall not include: (i) a hospital licensed  
9   under section 51 or by the federal government; (ii) an ambulatory surgical center as defined  
10   pursuant to section 25B and licensed under said section 51; or (iii) a surgical center performing  
11   services in accordance with section 12M of chapter 112. The term “office-based surgical center”  
12   shall not apply to the practice of dentistry or oral and maxillofacial surgery by an individual

13 licensed by the board of registration in dentistry in accordance with the provisions of chapter  
14 112.”